Revision Date:
04/01/2023

Background:
Household (HH) composition is used to determine which individuals will be included in the CalFresh HH.

Purpose:
This section details the effects HH composition has on determining eligibility. The section is being revised to include the CalFresh definitions of elderly and disabled along with clarification of the 165% elderly and disabled (E/D) separate HH determination rule. The section has been reformatted and is being updated due to sunset review.

Policy:
A CalFresh HH is an individual or group of individuals who live together and customarily purchase and prepare (P&P) meals together. A HH is determined by the relationship that exists among its members. Restricted relationships take priority when determining HH composition. The customer is responsible for providing complete and correct information to determine HH composition. Do not deny an application when an applicant applies separately but lives with others who must be included in the HH with the applicant. Continue processing the application and:

- Inform the applicant that the other persons living with him/her must be included in the HH, and
- Request information and verification of the other people in the home and continue processing the application for the entire HH following regulations as explained in 63-109.

If the applicant fails to provide the information and verification on other HH members needed to determine eligibility, deny the application for failure to provide information.

Note: An unaccompanied minor experiencing homelessness, who is not in the physical custody of a parent or guardian, is not living with an adult who has parental control over them, or in foster care may apply as their own HH even if there is no adult in the case.

1. Definitions:

The following are definitions for terms that will be used throughout the section:

Term	Definition
Elderly	A HH member who is 60 years of age or older.
Disabled	A HH member who receives or meets any of the following: • Supplemental Security Income (SSI) benefits under Title XVI, or disability or blindness payments under Title II (Social Security Disability Insurance Program) of the Social Security Act. • Disability retirement benefits from a governmental agency because of a disability considered permanent under Section 221(i) of the Social Security Act. • Interim assistance benefits pending receipt of SSI, provided that the eligibility to receive those benefits is based upon disability or blindness criteria which

	are at least as stringent as those used under Title XVI of the Social Security Act. • Disability-related medical assistance under Title XIX (Medi-Cal) of the Social Security Act. • Disability-based general assistance benefits, provided that the eligibility to receive those benefits is based upon disability or blindness criteria which are at least as stringent as those used under Title XVI of the Social Security Act. • An annuity payment under Section 2(a)(1)(iv) of the Railroad Retirement Act of 1974 and is determined to be eligible to receive Medicare by the Railroad Retirement Board; or Section 2(a)(1)(v) of the Railroad Retirement Act of 1974 and is determined to be disabled based upon the criteria used under Title XVI of the Social Security Act. • Veteran's benefits based on a service-connected or nonservice-connected disability rated by the Veteran's Administration (VA) as total or paid as total by the VA under Title 38 of the United States Code (this includes veterans considered by the VA to need regular aid and attendance or permanently housebound). • Is a surviving spouse of a veteran and considered by the VA to need regular aid and attendance or permanently housebound or a surviving child of a veteran and considered by the VA to be permanently incapable of self-support under Title 38 of the United States Code. • Is a surviving spouse or surviving child of a veteran and considered by the VA to be entitled to compensation for a service-connected death or pension benefits for a nonservice-connected death under Title 38 of the United States Code and has a disability considered permanent under Section 221(i) of the Social Security Act (entitled as used in this definition refers to those veterans' surviving spouses and surviving children who are receiving the compensation or pension benefits stated or have been approved for such payments, but are not yet receiving them).

2. Restricted HH:

Restricted HH members are individuals who live together and must be considered as P&P meals together, even if they claim not to be. Restricted HH members are required to be included in the same HH. The following are restricted HH members in which separate HH status cannot be approved:

- Spouses either married under applicable state law or who are living together and representing themselves to the community as married.
- A person under 22 years of age who is living with their natural or adoptive parent(s) or stepparent(s). When the parents of a child have joint custody and there is equal (50/50) physical custody of a child and the living arrangements are that the child lives with each parent an equal number of days per month, HH composition will be determined as follows:

If the child eats …	**then …**
the majority of meals in a month	the child may participate with the parent providing the majority of the meals, unless the two custodial parents agree

with one parent,	otherwise.
an equal number of meals with each parent monthly,	the first custodial parent to apply may participate with the child, unless the two custodial parents agree otherwise.

- A minor (other than a foster child) who lives with and is under the parental control of a HH member who is not his or her parent unless the minor meets one of the following conditions:
  - Has entered a valid marriage
  - Is on active duty in the U.S. armed forces
  - Has been emancipated by a court order

  Note: A minor (other than a foster child) is not considered under the parental control of a HH member when one of the following occurs:
  - The minor's liquid resources and/or income is sufficient to economically self-support their own affairs
  - The minor is approaching their 18th birthday in the calendar month prior to application
  - The minor comes and goes without approval
- Children who reside at a drug/alcohol treatment center with their parent.

3. Dependent Relationship:
If there is a dependent relationship between any restricted HH members, they must all be included in the HH. A dependent relationship is established if any of the following apply:
- Reside on the same parcel of land and **do not** live in separate and distinct living quarters. Separate and distinct living quarters include different buildings with self-contained living facilities, different units within the same building with self-contained living facilities, and mobile homes that are affixed to the land.
- Repeatedly using the kitchen, bathroom or sleeping facilities of the other person, repeatedly is defined as a majority of usage of any such type of facility.

4. Non-HH Members:
The following members should not be included as a member of the HH unless they P&P meals together. Non-HH members who are otherwise eligible, may participate as a separate HH from the individuals they live with. The following are considered non-HH members:
- Individuals to whom a HH provides lodging but not meals, also known as roomers.
- Live-in attendants or individuals who reside with a HH to provide medical, housekeeping, childcare or other similar personal services.
- Individuals who share living quarters and are not restricted HH members.

5. Separate HH Status:
Separate HH status may be approved for the following:
- An individual living with others who customarily P&Ps meals separately from the other members in the home.

  Note: A disabled individual who is unable to P&P (who is not a restricted HH member) their own meals but has arranged to have their food P&P separately from those they live with, even if the

person who shops for the food or prepares the meals for the disabled individual lives in the home, may claim separate HH status.

Example	
Scenario	HH consists of mom and her 30-year-old severely disabled son. Mom and son claim to P&P separately. Son states mom uses his money to shop for him and prepares his meals for him, since he is unable to.
Outcome	Son is considered a separate HH from mom and may have his own CalFresh case.

- An individual (and their children if living with them) who is a temporary resident of a shelter for battered persons.

6. 165% Rule for Separate HH Status for E/D HH Members:
Although all individuals living together who P&P meals together are considered to be one CalFresh HH, there is one exception. Refer to the table below for situations when an elderly person who suffers from a disability considered permanent under the Social Security Act or a non-disease related severe permanent disability may be considered a separate HH from those they P&P with.

If an E/D person (and their spouse) reports…	then the E/D person (and their spouse) …
they are unable to P&P their own meals therefore they P&P meals together with the other HH members they live with,	may be considered a separate HH from those they live with if the income of the other HH members (excluding the E/D individual and their spouse's income) is less than 165% of the Federal Poverty Line (FPL). **Note:** The E/D person (and their spouse) may be a separate HH but are not required to be. Staff should process the case based on what is most beneficial to the HH.
they P&P meals separately from the others in which they live,	is considered a separate HH and the 165% FPL rule is not used. **Note:** If the E/D person states to P&P separately we are to accept their statement.

See examples below:

Example 1	
Scenario	HH consists of a mother, her 2 minor children and their 61-year-old grandma who is receiving Social Security Disability benefits. Grandma is unable to P&P her meals on her own and reports she P&P with the rest of the HH. The HH income including the grandma's income is $3,200 per month. The grandma's income is $524 per month.
Outcome	HHs total income: $3,200 Grandma's income: - $524 HH gross income: $2,676 165% FPL of a HH of 3 (mom and 2 children) = $3,167 Since the income does not exceed 165% FPL for a HH of 3 people, the grandma

<table>
<tr><td></td><td>can be certified as her own HH consisting of just her, even if she reports to P&P with her daughter and grandchildren.</td></tr>
<tr><td colspan="2">Example 2</td></tr>
<tr><td>Scenario</td><td>HH consists of a mother, her 2 minor children and their 61-year-old grandma who is receiving Social Security Disability benefits. Grandma is unable to P&P her meals on her own and reports she P&P together with the rest of the HH. The HH income including the grandma’s income is $8,624 per month. The grandma’s income is $524 per month.</td></tr>
<tr><td>Outcome</td><td>
<table>
<tr><td>HHs total income</td><td>$8,624</td></tr>
<tr><td>Grandma’s income</td><td>- $524</td></tr>
<tr><td>HH gross income</td><td>$8,000</td></tr>
<tr><td colspan="2">165% FPL of a HH of 3 (mom and 2 children) = $3,167</td></tr>
</table>
Since the income exceeds 165% FPL for a HH of 3 people, the grandma cannot be certified as her own HH consisting of just her, the daughter and 2 grandchildren are required to be part of the CalFresh HH.</td></tr>
<tr><td colspan="2">Example 3</td></tr>
<tr><td>Scenario</td><td>HH consists of a mother, her 2 minor children and their 61-year-old grandma who is receiving Social Security Disability benefits. Grandma reports she P&P her meals separate from the HH. The HH income including the grandma’s income is $7,000 per month. The grandma’s income is $524 per month.</td></tr>
<tr><td>Outcome</td><td>Since grandma reports to P&P on her own evaluate her as a separate HH and do not review for the 165% rule.</td></tr>
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7. Residents of Institutions:

Residents of institutions are ineligible to CalFresh. Individuals are considered residents of an institution when the institution provides them with the majority of their meals (over 50% of three meals a day) as part of the institution’s normal services. Examples of institutions include Job Corps, hospitals, jails, commercial boarding houses, and nursing homes. Any time staff become aware that a HH member is residing in an institution, they should verify the information and discontinue benefits for the individual if the stay has lasted or is expected to last over 30 days.

The following individuals **are not** considered residents of institutions:

- Residents of federally subsidized housing for the elderly.
- Individuals residing in Drug or Alcoholic Treatment Centers (D/ATC), refer to 63-123.
- Children of residents of D/ATC who reside with their parent(s) in the treatment center.
- Disabled or blind individuals residing in Group Living Arrangements (GLA) receiving benefits under Title II of the Social Security Act, refer to 63-123.
- Residents of temporary shelters for battered persons, refer to 63-124.
- Residents of public or private nonprofit homeless shelters.

8. Boarders:
Boarders are individuals or groups of individuals residing with a HH in a private home and paying reasonable compensation to the HH for lodging and meals. Boarders should not be confused with roomers who are only paying for lodging. Commercial boarding houses are establishments licensed as commercial enterprises offering meals and lodging for compensation with the intent of making a profit. Residents of commercial boarding houses are considered residents of institutions and are ineligible to CalFresh. The table below demonstrates reasonable compensation:

If the board arrangement is for…	the boarder shall pay an amount…
more than 2 meals per day,	equal to or that exceeds the max monthly CalFresh allotment for the appropriate number of boarders.
2 meals or less per day,	equal to or that exceeds two-thirds of the max CalFresh allotment for the appropriate number of boarders.

Note: If the boarder pays less than reasonable compensation, they would not be treated as a boarder, they would be considered a member of the HH they live with and would be required to be included in the same CalFresh HH.

Boarders are ineligible to CalFresh when applying on their own. Boarders may only be eligible to CalFresh if the HH providing the boarding services applies for CalFresh and requests that the boarder be included in their HH. If the HH providing the boarding services applies for CalFresh and does not request the boarder be included in their HH, the income received from the boarder must be included in the budget as self-employment income. Refer to Section 63-225 for more information.

The following individuals **are** considered boarders if they are placed by a federal, state, or local government program in the private home of a relative or other individual. If the HH providing the lodging and meals requests to include them, their assistance payment must be counted in the budget:
- Foster Care or Approved Relative Caregiver (ARC) children.
- Non-Minor Dependent (NMD) children receiving CalWORKs under the Extended Foster Care Program (AB 12).
- Kinship Guardian Assistance Payment (Kin-GAP) children.

Note: Children who participate in the "Foster Care Wraparound Services" program are not considered foster care children.

9. NMD Receiving Extended Foster Care Living in a Supervised Independent Living Placement (SILP) or a Transitional Housing Placement Program (THPP):
The following individuals may apply for CalFresh as a separate HH, however if they report to P&P with others they live with, those individuals must be included in their CalFresh HH. NMD residing in SILPs and THPPs will have part of their Foster Care payment paid directly to the facility they live in, and the remainder paid directly to the NMD. The only portion of the foster care payment which should be included as unearned income is the portion paid directly to the NMD. Refer to How To #331 Entering THP/FC Benefits in CalFresh Case for instructions on how to enter the income.

10. Strikers:
A striker is defined as anyone involved in a strike or concerted stoppage of work by employees or any concerted slowdown or interruption of operations by employees. Included in the definition of a

concerted stoppage of work is a stoppage by reason of the expiration of a collective-bargaining agreement. HHs with striking members are ineligible to CalFresh unless the HH was eligible the day before the strike and is otherwise eligible at the time of application.

The following people **are not** considered strikers:

- Employees whose workplace is closed by an employer in order to resist demands of employees (a lockout).
- Non–striking employees unable to work as a result of striking employees.
- Employees not wanting to cross a picket line due to fear of personal injury or death.
- Individuals exempted from work registration on the day prior to the strike, other than those exempt solely on the grounds that they are employed.
- Employees whose employers have hired permanent replacements for the striking employees' jobs. The fact that the striking employees are offered other jobs does not affect their status as they must be able to return to the same job.

Refer to Processing Guide 101-01 for instructions on determining eligibility for strikers.

11. Head of HH:

The head of HH is usually the person in whose name the application is made, however the HH may designate any responsible HH member to serve as the head of HH. Although an individual may be designated as the head of HH, any responsible HH member may apply, recertify, complete the semi-annual report, or report changes. When there is no adult eligible to be included in the HH, the head of HH may be:

- A non-HH member.
- An excluded HH member.
- Any adult responsible for the minor HH member(s).
- A minor, if not living with an adult.

12. Ineligible HH Members:

These individuals are required to be included in the HH but are ineligible to CalFresh benefits. When determining benefits ineligible HH members are excluded from the HH size as described in the table below:

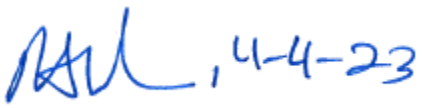
Reason for Ineligibility	Exclude When Determining the HH Size for the Purposes of
- Social Security Number (SSN) disqualified - Ineligible noncitizen - Individuals failing to meet Able Body Adults Without Dependents (ABAWD) work requirements	- Assigning a benefit level - Assigning a standard deduction - Comparing the HH's monthly income with the income eligibility standards - Comparing the HH's resources with the resource eligibility limits - Determining the categorical eligibility of the HH
- Intentional Program Violator (IPV) - Fleeing felon	- Assigning a benefit level - Comparing the HH's monthly income with the

- Probation/parole violator - Work sanctioned	income eligibility standards - Comparing the HH's resources with the resource eligibility limits
- Ineligible student	- Excluded from the HH size count for everything

References:
ACL 11-05, 14-100, 17-09, 18-90, 19-51
ACIN I-02-82, I-39-13, I-68-17
MPP 63-402, 503.44-.45
CFR 273.1
FNS Memorandum, Separate Household Status for Disabled Persons (6/12/2006)
Processing Guide 101-01 Household Concept

Sunset Date:
This policy will be reviewed for continuance by 04/30/2026.

Approval for Release:



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Self-Sufficiency Services